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Mandarich Law Group, LLP California Debt Collector License Number 10795-99.

Attorneys for Plaintiff: LVNV Funding LLC

Electronically FILED by
Superior Court of California,
County of Los Angeles
1/04/2024 4:00 PM
David W. Slayton,
Executive Officer/Clerk of Court,
By E. Flores, Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF LOS ANGELES - LIMITED**

LVNV Funding LLC,
Plaintiff,

vs.

Pilar Ocampo, an individual;

and DOES 1 through 10 inclusive.
Defendant.

Case No.

24CHLC00265

COMPLAINT FOR:

- 1. BREACH OF CONTRACT**
- 2. OPEN BOOK ACCOUNT**

DEMAND: \$7,098.58

Plaintiff alleges:

FACTS COMMON TO ALL CAUSES OF ACTION

1.Plaintiff is and at all times herein mentioned, LVNV Funding LLC, and successor in interest to original creditor, WebBank.

2.Plaintiff is a debt buyer, and is the sole owner of the debt at issue. Plaintiff's California Debt Collector License Number 10888-04.

3.The charge-off creditor at the time of charge-off is Avant II, LLC, 222 W Merchandise Mart Plaza Suite 900 Chicago, IL 60654, and the account number associated with this debt is XXX4864.

4.The subject credit account has been purchased by the following entities after charge-off: Resurgent Acquisitions LLC P.O. Box 10466 Greenville, SC 29603. The subject credit account was transferred by Resurgent Acquisitions LLC to Plaintiff LVNV Funding LLC, who maintains an address at C/O Resurgent Capital Services LP 55 Beattie Place, Suite 110, Greenville SC 29601.

1 5. Plaintiff is informed and believes that Defendant are individuals who currently reside
2 within the jurisdictional boundaries of the above entitled Court. Therefore, this Court is the
3 proper Court for trial of this action.

4 6. The name and last known address of the debtor as they appeared in the charge-off
5 creditor's records prior to the sale of the debt is Pilar Ocampo , 13248 Beaver 13248 Beaver,
6 Sylmar, CA 91342.

7 7. Plaintiff is unaware of the true names or capacities, whether individual, corporate,
8 associate or otherwise of the Defendant sued herein as DOES 1 through 10 inclusive, and therefore,
9 sued the Defendant by such fictitious names. Plaintiff will amend this Complaint to show their true
10 names and capacities once ascertained.

11 8. Plaintiff believes and at all times mentioned herein, each of the Defendant was, and is,
12 the agent, servant and employee, employer of each of the other Defendant, and also acted in the
13 capacity of and as agent of the other Defendant. Plaintiff also believes that the individual
14 Defendant, and each of them, are jointly and severally liable that the actions described herein
15 were taken as actions for the benefit of the Defendant's separate and/or community property.

16 9. Plaintiff believes that, for value received, Defendant and each of them, executed and
17 delivered a credit application to the original creditor, WebBank or made such application over the
18 telephone or Internet. Pursuant to the aforementioned application, WebBank provided Defendant
19 with a credit account, and granted use privileges on the same, account number XXX4864
20 (hereinafter "Account").

21 10. Prior to the commencement of this action, the Account was assigned for value to the
22 Plaintiff and Plaintiff is its current holder.

23 11. Defendant agreed to comply with the terms governing the use of the Account, as it was
24 amended from time to time, including repaying WebBank and any successors in interest, for any
25 charges on the Account including, but not limited to, charges for purchase of goods and service
26 and/or cash advances and balance transfers along with late charges, over limits charges related
27 thereto.
28

1 12. Defendant used the Account to make purchases and/or to take cash advances and/or to
2 make balance transfers. Each time the Defendant used the Account to purchase goods and services
3 and/or take cash advances and/or make balance transfers, Defendant reaffirmed their agreement to
4 repay WebBank and its successors in interest for the amount of the purchase and/or cash advances
5 and/or balance transfers, along with such other charges as may be assessed pursuant to the terms
6 governing the Account.

7 13. The date of last payment on the subject account was on September 30, 2022.

8 14. Within the last four years, the Defendant failed to make payments as agreed on the
9 Account. Defendant has failed, refused and neglected to pay amounts due on the Account.

10 15. The debt balance at charge-off was \$7,098.58, and upon information and belief there is
11 \$0.00 in post charge off fees and there is \$0.00 in post charge off interest.

12 16. Subsequent to charge-off, and after applying any and all applicable payments and
13 credits, the Defendant owes Plaintiff \$7,098.58.

14 17. Although demand has been made upon said Defendant to pay said amount, no part has
15 been paid, and it is now due and owing.

16 18. Upon information and belief, WebBank and successors in interest including Plaintiff
17 have duly performed all promises, conditions and agreements herein.

18 19. Plaintiff has complied with California Civil Code Section 1788.52.

19 20. Plaintiff has attached hereto as Exhibit A and incorporated herein by reference a copy
20 of Billing Statement and/or Loan File provided to the Defendant while the account was active,
21 demonstrating that the debt was incurred by the Defendant.

22 21. Plaintiff has attached hereto as Exhibit B and incorporated herein by reference a copy
23 of the Final Billing Statement and/or Transaction History.

24 22. Upon opening the Account with WebBank, the Defendant agrees to reimburse
25 WebBank, and hence Plaintiff as successor in interest for the costs related to the collection of
26 amounts owing on the Account. Plaintiff has been required to retain Mandarich Law Group, LLP
27 to pursue collection of the amount due hereunder.
28

1 **FIRST CAUSE OF ACTION**

2 **(Breach of Contract)**

3 23. Plaintiff refers to and incorporates paragraphs 1 through 22.

4 24. WebBank extended a credit loan to the Defendant.

5 25. Defendant accepted the terms and conditions of the Account by Defendant use of the
6 Account to make purchases and/or to take cash advances and/or to make balance transfers.

7 26. Defendant have breached the terms and conditions governing the Account by
8 failing to pay amounts due and owing on the Account.

9 27. As a direct and proximate result thereof, Plaintiff has been damaged in the amount of
10 \$7,098.58.

11 **SECOND CAUSE OF ACTION**

12 **(Open Book Account)**

13 28. Plaintiff refers to and incorporates paragraphs 1 through 26.

14 29. Within the past 4 years, Defendant and each of them became indebted in the amount of
15 the previously mentioned herein for a balance due on a book account for goods sold and delivered
16 and/or services rendered by WebBank. Although demand has been made upon Defendant, said
17 amount of \$7,098.58 has not been paid, and it is now due, owing and unpaid including attorney's
18 fees from Defendant to Plaintiff as successor in interest.
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2 WHEREFORE, Plaintiff prays for judgment against the Defendant as follows:

- 3
4 1. For the damages and money in the sum of \$7,098.58,
5 2. For reasonable attorneys fees pursuant to statute;
6 3. For costs of suit incurred; and
7 4. For such other and further relief as the Court deems just and proper.
8 5. Plaintiff remits all damages in excess of the jurisdictional amount of this Court.
9

10 Dated: 12/24/2023

11 By: **MANDARICH LAW GROUP, LLP**

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15 [X] Hayk Stambultsyan, Esq.
16 *Attorneys for Plaintiff*
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EXHIBIT A

Loan Agreement and Promissory Note

SECTION 21 OF THIS LOAN AGREEMENT AND PROMISSORY NOTE IS AN ARBITRATION PROVISION. IN THE EVENT OF A DISPUTE, THE ARBITRATION PROVISION WILL HAVE A SUBSTANTIAL EFFECT ON YOUR RIGHTS, INCLUDING YOUR RIGHT TO BRING OR PARTICIPATE IN A CLASS ACTION.

Date of Loan: July 21, 2022

Loan No.: ■■■4864

Lender/Creditor:

WebBank

c/o Avant

222 N. LaSalle St., Suite 1600

Chicago, IL 60601

Borrower:

pilar ocampo

13248 Beaver,

Sylmar, CA 91342

FEDERAL TRUTH IN LENDING ACT ("TILA") DISCLOSURES

ANNUAL PERCENTAGE RATE

The cost of your credit as a yearly rate.

27.29%

FINANCE CHARGE

The dollar amount the credit will cost you.

\$3089.72

Amount Financed

The amount of credit provided to you or on your behalf.

\$6500.00

Total of Payments

The amount you will have paid after you have made all payments as scheduled.

\$9589.72

Payment Schedule: You must make 35 monthly payments of \$266.38, with the first payment due on Thursday, August 25, 2022, and each subsequent payment due on the same day of each month thereafter, and a final payment of \$266.42 plus any unpaid fees, charges, and interest due on Friday, July 25, 2025.

Security: Your Payment Authorization as set forth in Section 3(b) of this Note secures repayment.

Late Fee: If a payment is not paid in full within 10 days after its due date, you will be charged a \$25.00 Late Fee.

Prepayment: If you pay off early, either in full or partially, you will not have to pay a penalty and you will not be entitled to a refund of part of the finance charge.

See the remainder of this Note for any additional information about nonpayment, default, and any required repayment in full before the scheduled date, and prepayment refunds and penalties.

Itemization of Amount Financed

The Amount Financed of \$6500.00 is calculated as follows:

\$6500.00 Principal Loan Amount

less

\$0.00 Administration Fee retained by WebBank

equals

\$6500.00 Amount Financed

\$6500.00 of Amount Financed is given to you directly

\$0.00 of Amount Financed is paid with respect to your existing loan serviced by Avant (Existing Payoff Amount)

ADDITIONAL PROVISIONS

1. Parties, Status of Application; Further Steps Before Approval and Funding of Loan.

WebBank, an FDIC-insured, state-chartered industrial bank headquartered in Salt Lake City, Utah, identified above as Lender/Creditor ("WebBank") is the lender of this loan ("Loan"). In this Loan Agreement and Promissory Note ("Note" or "Agreement"), the words "you," "your" and "Borrower(s)" mean the Borrower(s) identified above. The words "we," "us," and "our" mean WebBank, and after consummation any person who obtains WebBank's rights in this Note. We have not yet committed to make the Loan. We will only be committed to make the Loan if and when we initiate, in Utah, a transfer of funds from our offices in Utah to the bank account you identify for this purpose in the process of applying for the Loan or in connection with the Existing Payoff Amount referenced above to another account on your behalf. Any of our rights, actions, privileges or obligations which are permitted or required to be determined or performed hereunder may be determined or performed by our service provider and such determinations or actions shall have the same effect as if taken by us.

2. Promise to Pay; Interest.

If all conditions to funding the Loan are met (see Section 1) and the Loan is funded: (a) \$6500.00 of the Amount Financed will be deposited into Your Bank Account as defined below and \$0.00 of the Amount Financed is paid with respect to your existing loan serviced by Avant, LLC ("Avant") and (b) you promise to pay to us (i) the Principal Loan Amount of \$6500.00; (ii) simple interest, which accrues daily on the outstanding principal balance, from July 25, 2022 until the date the Loan is paid in full, at the daily rate of 0.07460274%; and (iii) any and all other amounts that become due and payable under this Note (collectively, the "Debt").

3. (a) Note Payments; Application of Payments.

Per the Payment Schedule, this Note is payable in 36 substantially equal monthly installments, including (i) 35 payments of \$266.38,

Maturity Date, you shall also be responsible for paying any outstanding fees, charges, and interest. Payments will be due on the same day of every month (such day of the month, or such other day of the month as you and we shall mutually agree in the future, being the "Monthly Due Date"). **You may choose to repay by either of the options below in the Section 3(b) Payment Authorization as well as any other reasonable form of payment that we permit including but not limited to paper check.** We have based the Payment Schedule on the assumption that you will pay all payments as scheduled. If any payment is scheduled on a date we are not open for business, then you agree to pay us on the next business day, and if such amount is paid on such next business day, we will credit such payment as if we received it on the applicable Monthly Due Date. Payments will be applied first to outstanding fees, if any, then to accrued interest, and then to principal. On the Maturity Date, any unpaid Debt will be payable in full. Unless modified by you and us, the final required payment will likely vary somewhat from prior required payments due to, among other things, early payments or paying more than scheduled, and late payments. If your payment history causes the interest owing to be less than the above Payment Schedule, we will adjust your final payoff payment to reflect such decrease. If your payment history causes the interest owing to be more than the above Payment Schedule or if any unpaid Debt remains after the Maturity Date, then interest will continue to accrue on the outstanding principal balance at the daily rate set forth above in Section 2 of this Agreement until your obligations, including outstanding principal balance, are paid in full.

3. (b) Payment Authorization.

The payment method checked below is based on the payment method you selected during the application process. **However, you may choose to repay by any other reasonable form of payment that we permit, including but not limited to mailing a paper check.** To make a payment via paper check, cashier's check, or money order, you can mail your payment to: c/o Avant, LLC, PO Box 9183380, Chicago, Illinois 60691-3380. Please note that any payment sent via physical means will be effective the day it is received, however, it may take up to 3 business days from the date the payment is received for it to be reflected on your account. Please note that post-dated checks are not an acceptable payment method and may not be effective the day they are received. If you wish to change your payment method, you may contact us by communicating with Avant at 800-712-5407 or [REDACTED]. You understand that we will process the payments provided for under this Agreement by the method checked below, which gives you convenience and gives us security that payments will be received on time.

X Direct ACH Debit. By selecting the Direct ACH Debit option, you hereby authorize us to initiate an electronic debit to the bank account you elect for this purpose during the application process, or any substitute account you later specify, hereinafter called "Your Bank Account," at the depository financial institution you identify, hereinafter called "Depository." You authorize us to electronically debit Your Bank Account in accordance with these provisions for amounts owing on or after each scheduled payment date in the Payment Schedule, or for other amounts and dates as provided in the provisions below.

Your Bank Account Information. If there is any missing or erroneous information regarding Depository or Your Bank Account, then you authorize us to verify and correct the information. You promise that the information that you provide to us relating to Your Bank Account corresponds to a legitimate, open and active account of which you are an owner and that you have the right to initiate (and to authorize us to initiate) electronic debits from Your Bank Account. You acknowledge that Your Bank Account also includes any bank account that you may designate for payment in the future, and which we confirm in writing with you.

Dates and Amounts in the Payment Schedule. You acknowledge that this authorization is an authorization to initiate an electronic debit to Your Bank Account on or after each scheduled Monthly Due Date for so long as amounts are owing by you to us under this Agreement. You authorize us to initiate an electronic debit for any amount owing in connection with your final payment to the extent such amount is less than your monthly payment amount.

Dates and Amounts Post Maturity Date. If, on the Maturity Date, any unpaid Debt remains and you do not instruct us to debit the full amount of your outstanding balance on the Maturity Date, then you authorize us to continue to initiate electronic debits to Your Bank Account beyond the Maturity Date on or after the Monthly Due Date in an amount equal to the monthly payment amount (\$266.38) set forth in your Payment Schedule, or if less, the remaining balance, including fees, charges, and interest, until your obligations are paid in full.

You authorize us to initiate electronic debits to Your Bank Account on or after each scheduled payment date, including Monthly Due Dates, for amounts due under any modified payment arrangement as set forth in the "**Other Payment Arrangements**" section under this **Direct ACH Debit** provision.

Termination. You understand and acknowledge that you may terminate this authorization by notifying us via email at [REDACTED] or by mail to Avant, ATTN: Compliance Department, 222 N. LaSalle St., Suite 1600, Chicago, Illinois 60601 at least three business days before you wish to terminate this authorization or in such time as to afford us and Depository a reasonable opportunity to act on your request. If an electronic debit is returned to us, we, or our service provider acting on our behalf, may terminate any future recurring electronic debits. If this occurs, you will be responsible for making your payments by some other method acceptable to us.

Authorization to Vary Amounts. You understand that you have the right to receive written notice if an electronic debit will vary from the amount authorized above. To exercise this right, you must send a written request to us via email at [REDACTED], or by mail at 222 N. LaSalle St., Suite 1600, Chicago, Illinois 60601. Unless you exercise this right, you authorize us to vary the amount of any electronic debit without notice so long as such debit is no more than the amount authorized above.

Partial Prepayments. If you make any partial prepayments, then you authorize us to vary the amount of the electronic debit as needed to reflect those partial prepayments. Any partial payment must be received at least 3 business days prior to an electronic debit to ensure an electronic debit amount is varied to reflect such partial payment.

Additional Amounts. You further authorize us to initiate single electronic debits for the combined amount of a monthly payment and a late fee that comes due under this Note and separate electronic debits to Your Bank Account for any applicable amounts that come due under this Note, including any Late Fee or Dishonored Payment Fee, on or after the dates they become due. Instead of or in addition to any electronic debits described above, you authorize us to electronically debit Your Bank Account for any amount and on any date that you subsequently confirm by phone, text message or e-mail.

Other Payment Arrangements. If we agree, you may enter into a modified payment arrangement that may change certain terms of this Payment Authorization. If you and we agree to change any terms of this Payment Authorization, including the dates or

amounts of scheduled monthly payments, all other provisions of this Payment Authorization not changed will remain in full force and effect. Unless otherwise specified in the terms of your modified payment arrangement, if you fail to satisfy your obligations under any payment arrangement, you complete your obligations, or we terminate a payment arrangement, then you authorize us to debit Your Bank Account on the dates and in the amounts set forth in your Payment Schedule, as it existed immediately prior to the modified payment arrangement, in accordance with this Payment Authorization.

Error Correction. In the event we make an error in processing any electronic debit, you authorize us to initiate an electronic debit or credit to Your Bank Account to correct the error. If you believe we have initiated a payment in a manner not contemplated by this authorization, then please contact Avant at 800-712-5407 or at 222 N. LaSalle St., Suite 1600, Chicago, Illinois 60601.

Applicable Law. You acknowledge that the origination of electronic debits from Your Bank Account must comply with the provisions of U.S. law.

Optional Electronic Debit Authorization. YOU ARE NOT (AND WERE NOT) REQUIRED TO AGREE TO THIS ELECTRONIC DEBIT AUTHORIZATION TO ENTER INTO A TRANSACTION WITH US. BY SELECTING THIS OPTION, YOU ACKNOWLEDGE THAT YOU ARE VOLUNTARILY CHOOSING TO PAY ELECTRONICALLY.

___ Pay By Mail. You agree to make your monthly installment via paper check. To make a payment via paper check, you can mail your payment to: c/o Avant, LLC, PO Box 9183380, Chicago, Illinois 60691-3380. Please note that any payment sent via physical means will be effective the day it is received, however, it may take up to 3 business days from the date the payment is received for it to be reflected on your account. Please note that post-dated checks are not an acceptable payment method and may not be effective the day they are received.

4. Prepayment.

You may prepay the Debt in whole or in part at any time without penalty. That is, you will not incur any additional fee or charge for partial prepayment or prepayment in full.

5. Fees and Charges.

(a) Your Loan is subject to a non-refundable Administration Fee of \$0.00. This fee is deducted from your Principal Loan Amount and is paid to WebBank as the originator of this Loan. The Amount Financed is the Principal Loan Amount less the Administration Fee. Pre-payments will not result in the refund of any Administration Fee amount. You acknowledge that the Administration Fee is considered a part of your Principal Loan Amount and is subject to the accrual of interest.

(b) If a payment is not paid in full within 10 days after its due date, you will be charged a \$25.00 Late Fee.

(c) We will charge you a Dishonored Payment Fee of \$15.00 each time any payment we initiate or you make in connection with this Note or the Debt is returned unpaid.

6. Re-initiation Authorization.

If you choose to make any payment via electronic debit, you authorize us to re-initiate any electronic debit a total of two additional times (if necessary) for the same amount if the electronic debit is dishonored.

7. Use of Amount Financed.

You promise that you will use the proceeds of the Loan for consumer purposes and not for any student loan or any illegal purposes.

8. Breach/Remedies.

If: (a) you fail to pay any scheduled installment when due; (b) any bankruptcy, receivership or insolvency proceeding is initiated by or against you or you make any assignment for the benefit of creditors; (c) you die; (d) you fail to keep any promise or meet any other obligation in this Note; or (e) we discover that you have made a material misrepresentation, then, subject to applicable law (including any notice or cure right under applicable law), we may declare all Debt under this Note immediately due and payable, exercise any right provided by applicable law and, if the Debt is referred for collection to an attorney who is not a salaried employee of ours, charge you reasonable attorneys' fees permitted by applicable law.

9. Waivers.

We may accept late or partial payments, even though marked "paid in full," or with similar language, without losing any of our rights under this Note, and we may delay enforcing any of our rights under this Note without losing them. We do not have to: (a) give notice that amounts due have not been paid ("notice of dishonor"), (b) demand payment of amounts due ("presentment"), or (c) obtain an official certification of nonpayment ("protest"). You hereby waive notice of dishonor, presentment and protest. Even if, at a time when you are in breach, we do not require you to pay immediately in full as described above, we will still have the right to do so if you are in breach at some other time. Neither our

failure to exercise any of our rights, nor our delay in enforcing or exercising any of our rights, will waive those rights in whole or in part, regardless of how often we fail or delay in enforcing or exercising such rights.

To the extent allowed by law, no extension of time for payment of any part of the Debt, and no alteration, amendment or waiver of any provision of this Note or any other document or agreement relating to the Debt or this Note shall release, modify, amend, waive, extend, change, discharge, terminate or affect your unconditional liability, and that of any other person or party who may become liable for the payment of all or part of the Debt, unless otherwise agreed to in writing.

10. Applicable Interest and/or Loan Charge Maximums Will Be Observed.

Notwithstanding any provision of this Note to the contrary, if any law applicable to this Note or the Debt is finally interpreted so that the interest or other charges or fees collected or to be collected in connection with the Debt or this Note exceed the legally permitted limit, then: (a) any such interest, charge or fee shall be reduced by the amount necessary to reflect and be in compliance with the maximum permitted limit; and (b) any sums already collected, to the extent such sums would otherwise exceed a permitted limit, will be refunded to you. We may choose to make this refund by applying such amounts to your then outstanding Debt by reducing the Debt and/or by making a direct payment to you.

11. Severability.

Except as set forth in the Arbitration Provision, the unenforceability of any provision of this Note shall not affect the enforceability or validity of any other provision of this Note.

12. Notices.

Unless otherwise specified, all notices and other communications under this Note shall be given in writing and shall be deemed to have been duly given and effective upon receipt if delivered in person, by recognized messenger service or by facsimile, email or other electronic transmission, and upon posting for notices we give you on our website. Any notice or other communication to you may be delivered in accordance with the consent to electronic communications you have executed or to the address we maintain for you in our records. Any notice to us must be sent to Avant, 222 N. LaSalle St., Suite 1600, Chicago, Illinois 60601 unless a different address for notice is later provided in writing by us to you.

13. Assignment.

You may not assign any of your obligations under this Note without our written permission, which we are not required to give. We may assign this Note at any time without your permission. Our transfer may be made by causing a registration of transfer in the record of ownership as described below, without providing you with any other notice (except where such notice is required by applicable law). Your obligations under this Note apply to all of your heirs, successors and permitted assigns, if any. Our rights under this Note apply to us and each of our successors and assigns. Ownership of this Agreement (and rights hereunder, including with respect to principal and interest) shall be registered in a record of ownership maintained by an entity specifically designated for such purposes. You hereby irrevocably appoint Avant as your agent acting solely for the purpose of maintaining such record of ownership. Any assignment or transfer of, or participation in, this Note (or rights hereunder) will be valid only if and when it is registered in such record of ownership. You shall treat each person whose name is registered in the record of ownership as the owner, assignee or participant, as applicable, for all purposes of this Agreement, including, but not limited to, the rights to payments of principal and interest. The record of ownership shall be made available to you in a form and manner determined by the agent maintaining it from time to time upon reasonable prior written notice.

14. Governing Law.

Except to the extent, if any, prohibited by applicable law, this Note (other than the Arbitration Provision) and all controversies relating to this Note are governed by federal law and, to the extent state law applies, the law of the State of Utah.

15. Amendment.

Except for orally agreed upon changes with respect to the Payment Authorization and any other changes to your Payment Schedule, this Note may not be amended, modified or limited except by a written agreement executed by both you and us.

16. Contacting You; Phone and Text Messages.

You authorize us and our affiliates, agents, assigns and service providers (collectively, the "Messaging Parties") to contact you using manual calling methods, automatic telephone dialing systems, artificial or prerecorded voice message systems, text messaging systems and automated email systems in order to provide you with information about this Note and the Debt, including information about upcoming payment due dates, missed payments and returned payments. You authorize the Messaging Parties to make such contacts using any telephone numbers (including wireless, landline and VOIP numbers) or email addresses you supply to the Messaging Parties in connection with your Loan application, the Messaging Parties' servicing and/or collection of amounts you owe the Messaging Parties or any other matter. You understand that anyone with access to your telephone or email account may listen to or read the messages the Messaging Parties leave or send you, and you agree that the Messaging Parties will have no liability for anyone accessing such messages. You further understand that, when you receive a telephone call,

text message or email, you may incur a charge from the company that provides you with telecommunications, wireless and/or Internet services, and you agree that the Messaging Parties will have no liability for such charges. You expressly authorize the Messaging Parties to monitor and record your calls with the Messaging Parties. To stop commercial advertising or promotional emails, you can follow the opt-out instructions included at the bottom of the Messaging Parties' emails.

17. Credit Reports and Monitoring.

NOTICE OF FURNISHING NEGATIVE INFORMATION. WE MAY REPORT INFORMATION ABOUT YOUR ACCOUNT TO CREDIT BUREAUS. LATE PAYMENTS, MISSED PAYMENTS, OR OTHER DEFAULTS ON YOUR ACCOUNT MAY BE REFLECTED IN YOUR CREDIT REPORT. WE MAY OBTAIN CREDIT REPORTS ON YOU ON AN ONGOING BASIS UNTIL THIS NOTE IS PAID IN FULL.

YOU UNDERSTAND AND AGREE THAT WEBBANK, AVANT AND THE HOLDER OF THIS NOTE MAY OBTAIN CONSUMER REPORTS AND RELATED INFORMATION ABOUT YOU FROM ONE OR MORE CONSUMER REPORTING AGENCIES THROUGHOUT THE TERM OF YOUR LOAN, INCLUDING IN THE MONTH FOLLOWING THE MONTH WHEN YOU PAY OFF OR OTHERWISE SATISFY THE LOAN. YOU EXPRESSLY AUTHORIZE WEBBANK, AVANT AND THE HOLDER OF THIS NOTE TO USE THE INFORMATION OBTAINED FROM SUCH REPORTS TO, AMONG OTHER THINGS, MARKET REFINANCINGS AND OTHER PRODUCTS TO YOU, MAKE DECISIONS RELATED TO THE SERVICING AND COLLECTION OF YOUR ACCOUNT, MEASURE HOW THE LOAN YOU OBTAINED FROM WEBBANK OR AVANT IMPACTS YOUR CREDIT, PERFORM OTHER STATISTICAL ANALYSIS AND SHARE INFORMATION WITH YOU ABOUT YOUR CREDIT PROFILE.

18. Credit Bureau Disputes.

If you believe we have inaccurately reported information about you or this Note to a credit reporting agency, contact us by communicating with Avant at 800-712-5407 or send an email to us at [REDACTED]. You will need to provide your Loan Number along with a copy of your credit bureau report reflecting the information that you believe is inaccurate. If you believe that you have been the victim of identity theft, submit an identity theft affidavit or identity theft report to [REDACTED].

19. Bankruptcy.

You promise that you are not a debtor under any proceeding in bankruptcy, have not consulted a bankruptcy attorney in the past six months and have no current intention of filing a petition for relief under the United States Bankruptcy Code. If you file for bankruptcy under the United States Bankruptcy Code, you must contact us in writing and include your Loan Number by communicating with Avant at 222 N. LaSalle St., Suite 1600, Chicago, Illinois 60601, Attn: Bankruptcy Notice.

20. Non-Negotiable Instrument.

This Note is not a negotiable instrument.

21. Arbitration Provision.

By signing below, you agree to this Jury Trial Waiver, Class Action Waiver and Arbitration Clause ("Clause"). We have drafted this Clause in question and answer form to make it easier to understand. But, this Clause is part of this Agreement and is legally binding.

Background and Scope.

<u>Question</u>	<u>Short Answer</u>	<u>Further Detail</u>
What is arbitration?	An alternative to court	In arbitration, a third party arbitrator ("TPA") resolves Disputes in a hearing ("hearing"). It is less formal than a court case.
Is it different from court and jury trials?	Yes	The hearing is private. There is no jury. It is usually less formal, faster, and less expensive than a lawsuit. Pre-hearing fact-finding (called "discovery") is limited. Appeals are limited. Courts rarely overturn arbitration awards.
Can you opt-out of this Clause?	Yes, within 60 days	If you do not want this Clause to apply, you must send us a signed notice within 60 calendar days after signing this Agreement. You must send the notice in writing (and not electronically) to the following address: Attn: Avant - Legal Department, 222 N. LaSalle St., Suite 1600, Chicago, Illinois 60601. You must provide your name, address and Agreement number and date of this Agreement. You must state that you "opt out" of the arbitration clause. If you opt-out of this Clause, it will not affect any other term of this Agreement.

What is this Clause about?	The parties' agreement to arbitrate Disputes	Unless prohibited by applicable law and unless you opt out, you and we agree that any party may elect to arbitrate or require arbitration of any "Dispute" as defined below.
Who does the Clause cover?	You, us, and certain "Related Parties"	This Clause governs you and us. It also covers certain "Related Parties." These include: (1) our parent companies, subsidiaries, and affiliates; (2) our employees, directors, officers, shareholders, members, representatives and service providers; and (3) any person or company that is involved in a Dispute that you pursue relating to this Agreement or your loan with us.
What Disputes does the Clause cover?	Most Disputes that would normally go to court (except certain Disputes about this Clause)	This Clause governs "Disputes" that would usually be decided in court and are between us (or any Related Party) and you. In this Clause, the word "Disputes" has the broadest reasonable meaning. It includes all past, present and future claims directly or indirectly arising from or related to your application, this Agreement, your loan and relationship with us and any communications relating to the same. It includes claims based on contract, tort, intentional tort, fraud, negligence, agency, equity, statute or regulation, or any other sources of law, claims seeking damages or injunctive or declaratory relief and initial claims, counterclaims, cross-claims, third-party claims. It includes claims related to any prior applications or agreements. It includes extensions. It includes claims related to privacy and customer information. It includes claims related to the validity in general of this Agreement. But, it does not include disputes about the validity, coverage, or scope of this Clause or any part of this Clause. All such disputes are for a court and not the TPA to decide.
Who handles the arbitration?	Usually AAA or JAMS	Arbitrations are conducted under this Clause and the rules of the arbitration company in effect at the time the arbitration is commenced. But, arbitration rules that conflict with this Clause do not apply. The arbitration company will be either: • The American Arbitration Association ("AAA"), 1633 Broadway, 10th Floor, New York, NY 10019, www.adr.org. • JAMS, 620 Eighth Avenue, 34th Floor, New York, NY 10018, www.jamsadr.org • Any other company picked by agreement of the parties. If all the above options are unavailable, a court will pick the arbitration company. But, no arbitration may be administered without our consent by any arbitration company that would permit class arbitration under this Clause. The arbitrator will be selected under the arbitration company's rules. But, the arbitrator must be a lawyer with at least ten years of experience or a retired judge unless you and we or the Related Parties to the Dispute otherwise agree.
Can Disputes be litigated?	Sometimes	Either party may bring a lawsuit in court if the other party does not demand arbitration before or after the lawsuit is brought. We will not demand arbitration of any lawsuit you bring as an individual action in small-claims court that is within that court's jurisdiction. But, we may demand arbitration of any small-claims action that is transferred, removed or appealed to a different court or if any small-claims action is brought on a class basis. Even if all parties have opted to litigate a Dispute in court, you or we may elect arbitration with respect to any Dispute brought by a new party or any Dispute later asserted by a party in that or any related or unrelated lawsuit. For example, if we file a lawsuit against you in court to recover amounts due under this Agreement, you have the right to request arbitration, but if you do not elect to request arbitration, we reserve and do not waive the right to request arbitration of any Dispute (including any counterclaim) you later assert against us in that or any related or unrelated lawsuit.

Are you and we giving up any rights if a Dispute is arbitrated?	Yes	If a Dispute is arbitrated, you and we give up our rights to: 1. Have juries decide Disputes. 2. Have courts, other than small-claims courts, decide Disputes. 3. Serve as a private attorney general or in a representative capacity. 4. Join or consolidate a Dispute with disputes by other parties. 5. Bring or be a class member in a class action claim or lawsuit, including as a representative or member, or class arbitration.
Can you or another consumer start class arbitration?	No	The TPA is <u>not</u> allowed to handle any Dispute on a class or representative basis. All Disputes subject to this Clause must be decided in an individual arbitration or an individual small-claims action. This Clause (except for this sentence) will be void if a court rules that the TPA can decide a Dispute on a class basis and the court's ruling is not reversed on appeal. Other terms of this Clause can be severed if held to be unenforceable and the remaining terms shall be enforced.
What law applies?	The Federal Arbitration Act ("FAA")	This Agreement involves interstate commerce. Thus, the FAA governs this Clause. The TPA must apply applicable substantive law consistent with the FAA. The TPA must honor statutes of limitation and privilege rights. Punitive damages are governed by the constitutional standards that apply in judicial proceedings. The TPA may award any damages or equitable relief provided for under applicable law for an individual action.
Will anything you do make this Clause ineffective?	No, unless otherwise agreed	The Clause stays effective unless the parties sign an agreement stating it doesn't. This Clause stays in force even if you default under your Agreement or go into or through bankruptcy or if the Agreement is assigned, terminated or is no longer in effect.

Process.

<u>Question</u>	<u>Short Answer</u>	<u>Further Detail</u>
What must a party do before starting a lawsuit or arbitration?	Send a written Dispute notice and work to resolve the Dispute	Before starting a lawsuit or arbitration, the complaining party must give the other party written notice of the Dispute. The notice must explain in reasonable detail the nature of the Dispute and any supporting facts. If Avant is the complaining party, notice of delinquency will be sent to you and posted to your online customer dashboard. Such notice of delinquency shall qualify as notice of Dispute for purposes of this provision. If you are the complaining party, you must send the notice in writing (and not electronically) to the following address: Attn: Avant - Legal Department, 222 N. LaSalle St., Suite 1600, Chicago, Illinois 60601. You, or an attorney you have personally hired, must sign the notice and must provide your Agreement number and a phone number where you (or your attorney) can be reached. Once a Dispute notice is sent, the complaining party must give the other party a reasonable opportunity over the next 30 days to resolve the Dispute on an individual basis.

How does arbitration start?	Following the rules of the selected arbitration company	If the parties do not reach an agreement to resolve the Dispute within 30 days after notice of the Dispute is received, the complaining party may commence a lawsuit or arbitration, subject to the terms of this Clause. To start arbitration, the complaining party picks the arbitration company and follows the arbitration company's rules. If one party begins or threatens a lawsuit, or files a counterclaim in an existing lawsuit, the other party can demand arbitration. This demand can be made in court papers such as a motion to compel arbitration. It can be made if a party begins a lawsuit on an individual basis and then tries to pursue a class action. Once an arbitration demand is made, no lawsuit can be brought and any existing lawsuit must stop.
Will any hearing be held nearby?	Yes	The TPA may decide that an in-person hearing is unnecessary and that he or she can resolve a Dispute based on written filings and/or a conference call. But, any in-person arbitration hearing must be held at a place reasonably convenient to you.
What about appeals?	Very limited	Appeal rights under the FAA are very limited. Except for FAA appeal rights and except for Disputes involving more than \$50,000 (including Disputes involving requests for injunctive relief that could cost more than \$50,000), the TPA's award will be final and binding. For Claims involving more than \$50,000, any party may appeal the award to a panel of three TPAs appointed by the arbitration company, which will reconsider from the start anything in the initial award that is appealed. The panel's decision will be final and binding, except for any FAA appeal right. Any appropriate court may enter judgment upon the arbitrator's award.

Arbitration Fees and Awards.

<u>Question</u>	<u>Short Answer</u>	<u>Further Detail</u>
Who bears arbitration fees?	We generally pay most fees, sometimes all	We will pay our share of the filing, administrative, hearing and TPA's fees. At your request, we will advance your share of these fees if you act in good faith and cannot get a waiver. We will always pay these fees if required under applicable law or the arbitration company's rules or if payment is required to enforce this Clause.
When will we cover your legal fees and costs?	If you win	If you win an individual arbitration, we will pay your reasonable fees and costs for attorneys, experts, and witnesses. We will also pay these amounts if required under applicable law or the arbitration company's rules or if payment is required to enforce this Clause. The TPA shall not limit his or her award of these amounts because your Dispute is for a small amount. In situations other than those described in this answer, you will be responsible for your own attorney fees and other expenses.
Will you ever owe us for arbitration or attorneys' fees?	Under certain circumstances	The TPA can require you to pay our fees if (1) permitted under applicable law or if the TPA finds that you have acted in bad faith (as measured by the standards set forth in Federal Rule of Civil Procedure 11(b)); and (2) this power does not make this Clause invalid.

Can a failure to resolve a Dispute informally result in a larger recovery for you? **Yes**

You are entitled to an arbitration award of at least \$7,500 if: (1) you give us notice of a Dispute on your own behalf (and not on behalf of any other party) and comply with all of the requirements of this Clause (including the requirements described in response to the question reading "What must a party do before starting a lawsuit or arbitration?"); (2) we refuse to provide you with the relief you request before an arbitrator is appointed and (3) the TPA awards you money damages greater than the last amount you requested at least ten days before the arbitration commenced. This is in addition to the attorneys' fees and expenses (including expert witness fees and costs) to which you are otherwise entitled. This \$7,500 minimum award is a single award that applies to all Disputes you have raised or could have raised in the arbitration. Multiple awards of \$7,500 are not contemplated by this Clause. Settlement demands and offers are strictly confidential. They may not be used in any proceeding by either party except to justify a minimum recovery of \$7,500.

Can an award be explained? **Yes**

A party may request an explanation from the TPA, within 14 days of the ruling. Upon such request, the TPA will explain the ruling in writing.

22. State Notices and Special Provisions.

All Borrowers, including California / New York / Rhode Island / Utah / Vermont Residents

You give us and our agents, successors, and assigns permission to access your credit report in connection with any transaction, or extension of credit, and on an ongoing basis, for the purpose of reviewing this Note, taking collection action on this Note, or for any other legitimate purposes associated with this Note. Upon your request, you will be informed of whether or not a consumer credit report was ordered, and if it was, you will be given the name and address of the consumer reporting agency that furnished the report. As required by law, you are hereby notified that a negative credit report reflecting on your credit record may be submitted to a credit reporting agency if you fail to fulfill the terms of your credit obligations.

All Borrowers, including Iowa / Maine / Missouri / Nebraska / Oregon / Texas / Utah / Washington Residents

Oral agreements or commitments to loan money, extend credit or to forbear from enforcing repayment of a debt, including promises to extend or renew such debt, are not enforceable. To protect you (borrower) and us (creditor) from misunderstanding or disappointment, any agreements we reach covering such matters are contained in this writing, which is the complete and exclusive statement of the agreement between us, except as we may later agree in writing to modify.

All Borrowers, including Iowa and Kansas Residents

NOTICE TO CONSUMER:

- 1. Do not sign this Agreement before you read it.**
- 2. You are entitled to a copy of this Agreement.**
- 3. You may prepay the unpaid balance at any time without penalty.**

California Residents

A married applicant may apply for a separate account.

Maryland Residents

To the extent, if any, that Maryland law applies to this Note, we elect the Credit Grantor Closed-End Credit Provisions in Title 12, Subtitle 10 of the Commercial Law Code as the applicable Maryland law.

Massachusetts Residents

Massachusetts law prohibits discrimination based upon marital status or sexual orientation.

New Hampshire Residents

You shall be awarded reasonable attorney's fees if you prevail in any legal action you bring against us or we bring against you. If you successfully assert a partial defense, set-off or counterclaim against us in an action we bring against you, the court or arbitrator may withhold from us the entire amount or such portion of the attorney's fees as it considers

equitable. You or your attorney may file a complaint with the New Hampshire Commissioner of Banking, State of New Hampshire Banking Department, 53 Regional Drive, Suite 200, Concord NH 03301. Instructions for filing complaints can be found on the Commissioner's website at www.nh.gov/banking/consumer-assistance/complaint.htm.

Ohio Residents

The Ohio laws against discrimination require that all creditors make credit equally available to all creditworthy customers, and that credit reporting agencies maintain separate credit histories on each individual upon request. The Ohio Civil Rights Commission administers compliance with this law.

Married Wisconsin Residents

If you are married: (1) You confirm that the Loan is being incurred in the interest of your marriage or family. (2) No provision of any marital property agreement, unilateral agreement, or court decree under Wisconsin's Marital Property Act will adversely affect a creditor's interest unless prior to the time credit is granted, the creditor is furnished a copy of that agreement or decree or is given complete information about the agreement or decree. (3) You understand and agree that we will provide a copy of this Note to your spouse for his or her information.

BY CONSIDERING AND TAKING ACTION ON YOUR APPLICATION FOR THE LOAN, WE AGREE TO THE TERMS OF THIS NOTE, INCLUDING THE ARBITRATION PROVISION.

BY CLICKING THE BUTTON BELOW READING "I AGREE," YOU ACKNOWLEDGE THAT YOU HAVE RECEIVED AND HAVE READ A COMPLETED COPY OF THIS NOTE, YOU UNDERSTAND THIS NOTE AND YOU AGREE TO ITS TERMS, INCLUDING THE ARBITRATION PROVISION.

CAUTION—IT IS IMPORTANT THAT YOU THOROUGHLY READ THE AGREEMENT BEFORE YOU SIGN IT.

NOTICE TO BORROWER

- (a) DO NOT SIGN THIS NOTE BEFORE YOU READ THE WRITING ABOVE, EVEN IF OTHERWISE ADVISED.**
- (b) DO NOT SIGN THIS NOTE IF IT CONTAINS ANY BLANK SPACES.**
- (c) YOU ARE ENTITLED TO AN EXACT COPY OF ANY AGREEMENT YOU SIGN.**
- (d) YOU HAVE THE RIGHT AT ANY TIME TO PAY IN ADVANCE THE UNPAID BALANCE DUE UNDER THIS NOTE.**

[I AGREE]

Customer Signature:

Name: pilar ocampo

Last 4 SSN: ■■■■

Signed At: July 21, 2022 19:03

Customer ID: 74319471

SIGNATURE: 39174051c174ef460dbe97a93653b358533fb826

Notice to Arizona Borrowers: You may request that the initial disclosures prescribed in the Truth in Lending Act (15 United States Code §§ 1601 through 1666j) be provided in Spanish before signing any loan documents.

Aviso a solicitantes de prestamos en Arizona: Tiene el derecho de solicitar la declaración de divulgación inicial prescrita en la legislación de Veracidad de Crédito (Truth in Lending Act-15 United States Code §§ 1601 through 1666j) en Español antes de firmar cualquier documento de prestamo.

EXHIBIT B

Loan ID	2864													
Consumer Name	pillar oca mpc													
Amount Issued	6500													
Funding Date	7/25/2022													
Charge Off Date	3/28/2023													
Sale Date	4/28/2023													
	2058.58													
	7098.58													
Date	Principal Outstanding Day Begin	Interest Outstanding Day Begin	Fees Outstanding Day Begin	Total Amount Collected on Date	Principal Paid	Interest Paid	Late Fees Paid	% of Fees Paid	Principal Outstanding After Payment	Interest Outstanding After Payment	Fees Outstanding After Payment	Outstanding Payoff Balance*		
7/25/2022	6500	0	0	0	0	0	0	0	6500	0	0	0	6500	
7/31/2022	6500	34.09	0	0	0	0	0	0	6500	34.09	0	0	6534.09	
8/06/2022	6500	174.27	0	0	264.38	91.91	174.27	0	6235.62	0	0	0	6346.93	
8/31/2022	6408.19	4.78	0	0	0	0	0	0	6408.19	4.78	0	0	6412.97	
9/06/2022	6408.19	-148.2	0	266.38	118.18	-148.2	0	0	6290.01	0	0	0	6290.01	
10/31/2022	6390.01	145.46	0	0	0	0	0	0	6390.01	145.46	0	0	6435.47	
11/11/2022	6290.01	197.08	25	0	0	0	0	0	6290.01	197.08	25	25	6512.59	
11/30/2022	6290.01	286.24	25	0	0	0	0	0	6290.01	286.24	25	25	6601.25	
12/13/2022	6290.01	347.24	50	0	0	0	0	0	6290.01	347.24	50	50	6687.25	
12/31/2022	6290.01	631.71	50	0	0	0	0	0	6290.01	631.71	50	50	6771.72	
1/11/2023	6290.01	429.43	75	0	0	0	0	0	6290.01	429.43	75	75	6843.64	
1/31/2023	6290.01	577.18	75	0	0	0	0	0	6290.01	577.18	75	75	6942.19	
2/11/2023	6290.01	624.1	100	0	0	0	0	0	6290.01	624.1	100	100	7014.11	
2/28/2023	6290.01	736.57	100	0	0	0	0	0	6290.01	736.57	100	100	7098.58	
3/01/2023	6290.01	736.57	100	0	0	0	0	0	6290.01	736.57	100	100	7098.58	
4/06/2023	6290.01	736.57	100	0	0	0	0	0	6290.01	736.57	100	100	7098.58	
5/01/2023	6290.01	736.57	100	0	0	0	0	0	6290.01	736.57	100	100	7098.58	
6/11/2023	6290.01	736.57	100	0	0	0	0	0	6290.01	736.57	100	100	7098.58	
6/28/2023	6290.01	736.57	100	0	0	0	0	0	6290.01	736.57	100	100	7098.58	